The Honorable Richard A. Jones

UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF WASHINGTON
AT SEATTLE

CHEYANNE ROSA DIXSON, Plaintiff, v. CITY OF ISSAQUAH POLICE DEPARTMENT, MAYOR MARY LOU PAULY, WALLY BOBKIEWICZ, DOES 1-25, Defendants.	CASE NO. 2:22-cv-01771-RAJ DEFENDANTS PAULY AND BOBKIEWICZ'S ANSWER AND AFFIRMATIVE DEFENSES TO PLAINTIFF'S COMPLAINT FOR DECLARATORY RELIEF AND DAMAGES

Mary Lou Pauly ("Pauly") and Walter "Wally" Joseph Bobkiewicz III ("Bobkiewicz") (collectively, "Defendants") hereby answer and assert affirmative defenses to Plaintiff's Complaint for Declaratory Relief and Damages ("Complaint") filed by Plaintiff Cheyanne Rosa Dixson ("Plaintiff").

ANSWER

I. INTRODUCTION

1. Pauly and Bobkiewicz admit the allegations in Paragraph 1.

2. Pauly and Bobkiewicz admit the allegations in Paragraph 2.

3. Pauly and Bobkiewicz admit the allegations in Paragraph 3.

4. Pauly and Bobkiewicz deny the allegations in Paragraph 4, as it was determined there was no reasonable accommodation that Plaintiff could be offered on an ongoing basis that would

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
Telephone: (206) 676-7000
Fax: (206) 676-7001

enable Plaintiff to safely perform her duties without creating an undue hardship on the City.

5. Paragraph 5 states legal claims to which no response is required. To the extent an answer is required, Pauly and Bobkiewicz deny the same.

II. JURISDICTION AND VENUE

2.1 Pauly and Bobkiewicz admit the allegations in Paragraph 2.1.

2.2 Pauly and Bobkiewicz admit the allegations in Paragraph 2.2.

2.3 The allegations in Paragraph 2.3 are legal conclusions, to which no response is required. To the extent a response is deemed required, Pauly and Bobkiewicz admit that 28 U.S.C. §2201-02 permits federal courts to grant "necessary or proper relief based on a declaratory judgment," and that Fed. R. Civ. P. 57 and 65 permit federal courts to grant declaratory and injunctive relief, respectively, but otherwise denies that Plaintiff's disputed claims are "authorized" under these provisions.

III. PARTIES

3.1 Pauly and Bobkiewicz lack sufficient information to admit or deny whether Plaintiff is presently a resident of Washington State, who lives in King County. Pauly and Bobkiewicz otherwise admit the allegations in Paragraph 3.1.

3.2 Pauly and Bobkiewicz admit that the City of Issaquah, Washington (the "City") is a municipality in King County, Washington, which employed Plaintiff during the time the alleged actions in the Complaint took place. Pauly and Bobkiewicz admit that they were each employed by the City and acting in their official capacities at all times relevant to this lawsuit, and that they are each residents of King County, Washington.

3.3 Pauly and Bobkiewicz lack sufficient information to admit or deny the allegations in Paragraph 3.3.

IV. FACTS

4.1 Pauly and Bobkiewicz admit that Governor Inslee issued Proclamation 21-14 on or around August 9, 2021, and answer that the content of the proclamation speaks for itself. Pauly and

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
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Bobkiewicz further admit that the City of Issaquah issued an administrative order regarding "Update: COVID-19 (Coronavirus) Protection Plan & Policy Updates – July 1, 2021" on or around June 30, 2021, and answers that the content of the administrative order speaks for itself. Except as so admitted, Pauly and Bobkiewicz deny the remaining allegations in Paragraph 4.1.

4.2 Pauly and Bobkiewicz admit the allegations in Paragraph 4.2.

4.3 Pauly and Bobkiewicz answer that the content of the October 15, 2021 letter from Human Resources Director Stephanie Johnson to Plaintiff speaks for itself. Pauly and Bobkiewicz deny any suggestion in Paragraph 4.3 that the City's actions were motivated by intentions to "insult" or "coerce" Plaintiff into violating her beliefs. Pauly and Bobkiewicz lack knowledge or information sufficient to answer the allegation regarding whether Plaintiff complied with all the requirements of her temporary accommodation, as alleged in Paragraph 4.3, and thus deny the same. Except as so admitted, Pauly and Bobkiewicz deny the remaining allegations of Paragraph 4.3.

4.4 Pauly and Bobkiewicz answer that the content of the February 2, 2022 email referenced in Paragraph 4.4 speaks for itself. Except as so answered, Pauly and Bobkiewicz deny the remaining allegations of Paragraph 4.4.

4.5 Pauly and Bobkiewicz answer that the referenced email correspondence and separation date were dated February 15, 2022, not February 14, 2022, as alleged. They further answer that the content of the correspondence speaks for itself. Except as so answered, Pauly and Bobkiewicz deny the remaining allegations of Paragraph 4.5.

4.6 Pauly and Bobkiewicz answer that the content of the Mayor's February 15, 2022, correspondence speaks for itself. Except as so answered, Pauly and Bobkiewicz deny the remaining allegations of Paragraph 4.5.

4.7 The allegations in Paragraph 4.7 are legal conclusions, to which no response is required. To the extent a response is deemed required, Pauly and Bobkiewicz deny the allegations in Paragraph 4.7, as it erroneously assumes applicability of RCW 41.12.090 and Rule 15 of the Issaquah Civil Service Rules to the non-disciplinary action taken here. Pauly and Bobkiewicz further

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SEATTLE, WASHINGTON 98104-2682
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Fax: (206) 676-7001

deny these allegations because, even if RCW 41.12.090 and Rule 15 did apply here, which they do not, Plaintiff's allegations in Paragraphs 4.4-4.6 of the Complaint reflect that the City fulfilled all notice requirements under these rules. Pauly and Bobkiewicz admit that Ms. Dixson was employed by the City for five years and was a commissioned officer. Except as so answered, Pauly and Bobkiewicz deny the remaining allegations of Paragraph 4.7.

4.8 Pauly and Bobkiewicz admit that the EEOC issued a letter on September 26, 2022, which included a notice of Plaintiff's right to sue the City following dismissal of her charge. Pauly and Bobkiewicz deny any inference that the EEOC's September 26, 2022 letter named or referenced them, or granted Plaintiff a right to sue them.

4.9 Pauly and Bobkiewicz deny any inference that Plaintiff's tort claim form referenced or extended to claims against Pauly and Bobkiewicz. Pauly and Bobkiewicz lack knowledge or information sufficient to admit or deny that the attached form was submitted to the City, and accordingly deny the same; Pauly and Bobkiewicz otherwise admit the allegations in Paragraph 4.9.

4.10 Pauly and Bobkiewicz deny the allegations in Paragraph 4.10.

V. CAUSE OF ACTION

FIRST CAUSE OF ACTION
Discriminatory Employment Practices
Violation of 42 42 U.S.C. §2000(e)

5.1 Pauly and Bobkiewicz reassert their responses to the paragraphs above.

5.2 Pauly and Bobkiewicz deny that "Plaintiffs were performing competently the position they held with the Snohomish Regional Fire Department," as alleged in Paragraph 5.2. The remaining allegations in Paragraph 5.2 are legal conclusions, to which no response is required.

5.3 The allegations in Paragraph 5.3 are legal conclusions, to which no response is required. To the extent a response is deemed required, Pauly and Bobkiewicz deny that they engaged in any actions in violation of Title VII in conjunction with the City's COVID-19 vaccination

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SEATTLE, WASHINGTON 98104-2682
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policies.

5.4 The allegations in Paragraph 5.4 state legal conclusions, to which no response is required. Pauly and Bobkiewicz admit that the City exempted Plaintiff from the vaccination requirement based on her communication of a sincerely held religious belief, that she was qualified for her position, and continued to perform the duties of her position until her separation date. Pauly and Bobkiewicz otherwise deny the allegations in Paragraph 5.4.

5.5 Pauly and Bobkiewicz admit that there is a dispute between Plaintiff and the City concerning the City's inability to reasonably accommodate Plaintiff on the basis of her sincerely held religious beliefs without undue hardship, but otherwise deny the allegations in Paragraph 5.5.

SECOND CAUSE OF ACTION
Violation of Washington Law Against Discrimination
(RCW §49.60)

5.6 Pauly and Bobkiewicz reassert their responses to the paragraphs above.

5.7 Pauly and Bobkiewicz deny the allegations with respect to the Snohomish Regional Fire Department, as alleged in Paragraph 5.7. The remaining allegations in Paragraph 5.7 are legal conclusions, to which no response is required.

5.8 Pauly and Bobkiewicz admit Plaintiff put the City of Issaquah on notice that she had a sincerely held religious belief which conflicted with the vaccination policy/requirement of the employer, as alleged in Paragraph 5.8. Except as so admitted, Pauly and Bobkiewicz deny the allegations in Paragraph 5.8.

5.9 Pauly and Bobkiewicz admit that the City of Issaquah exempted Plaintiff from the vaccination requirement based on her communication that the requirement violated her sincerely held religious beliefs; and that the City of Issaquah provided Plaintiff with additional time, should she choose to become vaccinated. Except as so admitted, Pauly and Bobkiewicz deny the allegations in Paragraph 5.9.

5.10 Pauly and Bobkiewicz admit that the City of Issaquah accommodated Plaintiff for

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
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over three months following implementation of the vaccine policy, but otherwise deny the allegations in Paragraph 5.10.

THIRD CAUSE OF ACTION
Fourteenth Amendment
Violations Due Process of Law
Violation of RCW 41.12 and Issaquah Civil Service Rules
(42.S.C. §1983)

5.11 Pauly and Bobkiewicz reassert their responses to the paragraphs above.

5.12 The allegations in Paragraph 5.12 are legal conclusions, to which no response is required. To the extent a response is deemed required, Pauly and Bobkiewicz deny that RCW 41.12.090 is applicable to the separation of employment for failure to satisfy conditions of employment at issue here, but otherwise admit the allegations in Paragraph 5.12.

5.13 The allegations in Paragraph 5.13 are legal conclusions, to which no response is required. To the extent a response is deemed required, Pauly and Bobkiewicz deny the allegations in Paragraph 5.13, as it erroneously assumes applicability of RCW 41.12.090 and Rule 15 of the Issaquah Civil Service Rules to the non-disciplinary action taken here. Pauly and Bobkiewicz further deny these allegations because, even if RCW 41.12.090 and Rule 15 did apply here, which they do not, Plaintiff's allegations in Paragraphs 4.4-4.6 of the Complaint reflect that the City fulfilled all notice requirements under these rules.

5.14 The allegations in Paragraph 5.14 are legal conclusions, to which no response is required. To the extent a response is deemed required, Pauly and Bobkiewicz deny the allegations in Paragraph 5.14, as it erroneously assumes applicability of RCW 41.12.090 and Rule 15 of the Issaquah Civil Service Rules to the non-disciplinary action taken here. Pauly and Bobkiewicz further deny these allegations because, even if RCW 41.12.090 and Rule 15 did apply here, which they do not, Plaintiff's allegations in Paragraphs 4.4-4.6 of the Complaint reflect that the City fulfilled all due process requirements under these rules.

5.15 The allegations in Paragraph 5.15 are legal conclusions, to which no response is

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required. To the extent a response is deemed required, Pauly and Bobkiewicz admit that, at all relevant times, Pauly and Bobkiewicz acted under color of law and authority vested in them by the City, but otherwise deny the allegations in Paragraph 5.15.

VI. PRAYER FOR RELIEF

Pauly and Bobkiewicz therefore deny that Plaintiff is entitled to any relief in this matter.

AFFIRMATIVE DEFENSES

As affirmative defenses, Pauly and Bobkiewicz assert and state as follows:

1. Plaintiff has failed in whole or in part to state a claim on which relief can be granted.

2. Plaintiff has suffered no damages and/or has failed to mitigate damages.

3. Plaintiff's requested accommodation imposes an undue hardship.

4. Plaintiff's requested accommodation poses a direct threat to the City, its employees, and the public.

5. Plaintiff has failed to file a notice of tort claims against Pauly and Bobkiewicz.

6. Pauly and Bobkiewicz are entitled to qualified immunity from Plaintiff's claims.

7. Plaintiff has failed to exhaust administrative remedies.

8. Pauly and Bobkiewicz reserve the right to add, supplement, modify, change, or amend any or all of their Affirmative Defenses as the facts and circumstances become known through discovery and/or investigation.

PRAYER FOR RELIEF

WHEREFORE, Defendants Pauly and Bobkiewicz pray:

1. The Complaint against Defendants be dismissed with prejudice;

2. Pauly and Bobkiewicz be awarded their reasonable attorneys' fees and costs in accordance with 42 U.S.C. § 2000e-5k; and

3. That Pauly and Bobkiewicz be awarded such other and further relief as the Court deems just and equitable.

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315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
Telephone: (206) 676-7000
Fax: (206) 676-7001

DATED this 2nd day of February, 2023.

Respectfully submitted,

SUMMIT LAW GROUP, PLLC
Attorneys for City of Issaquah Police Department

By *s/ Shannon E. Phillips*
Shannon E. Phillips, WSBA #25631
shannonp@summitlaw.com

By *s/ Britaney R. Garrett*
Britaney R. Garrett, WSBA #48607
britaneyg@summitlaw.com

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315 FIFTH AVENUE SOUTH, SUITE 1000
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